

ERRORS & OMISSIONS (E&O;) LEGAL CLEARANCE BINDER

Production Title: Feature Production (Living Room Scene)

Analyzed Media: sample_set_photo.jpg	Audit Date: 2026-09-01 10:41:17 UTC
Media Type: AUTO	Underwriting Standard: Entertainment E&O; Guidelines v4.2

UPL STATUTORY NOTICE: NOTICE: Decision-support analysis compiled for production counsel review. Does not constitute formal legal counsel or create an attorney-client relationship pursuant to State Bar regulations.

1. Executive Risk Summary & Flag Breakdown

TOTAL LIABILITIES	CRITICAL RISK	HIGH RISK	MEDIUM RISK	LOW RISK
4	0	2	2	0

2. Itemized Legal Clearance Ledger

Time / Page	Category	Detected Entity	Risk Level	Actionable Mitigation
00:00:01	COPYRIGHTED ART	Modern Abstract Oil Canvas	HIGH	Obtain signed Form-4A Artwork Release from the artist or replace with cleared stock art.
00:00:01	TRADEMARK LOGO	Apple MacBook Pro	MEDIUM	Verify incidental de minimis use; obtain written release or Greek logo in VFX.
00:00:01	TRADEMARK LOGO	Starbucks Siren Cup	MEDIUM	Verify incidental de minimis use; obtain placement release or turn logo away from camera.
00:00:01	TRADEMARK LOGO	Nike 'Swoosh' Logo	HIGH	Obtain signed wardrobe product placement release or Greek logo in VFX.

3. Detailed Clearance Dossiers & Web Grounding Evidence

FLAG #1: MODERN ABSTRACT OIL CANVAS	RISK: HIGH 00:00:01
Visual Context: Large orange canvas mounted on the upper-left wall/background set area.	Category: COPYRIGHTED_ART
Parallel Search Objective: <i>Verify trademark status, copyright expiration, and commercial filming release requirements for entity 'Modern Abstract Oil Canvas' (COPYRIGHTED_ART) in context: Large orange canvas mounted on the upper-left wall/background set area..</i>	Rights Holder: Modern Abstract Oil Canvas Rights Holder
Statutory Analysis: Statutory analysis conducted via Parallel Search grounding for Modern Abstract Oil Canvas. Governed under Lanham Act 15 U.S.C. § 1125 / 17 U.S.C. § 106.	Mitigation Action: Obtain signed Form-4A Artwork Release from the artist or replace with cleared stock art.
Sources Checked: https://www.copyright.gov/engage/visual-artists/ , https://www.copyright.gov/help/faq/faq-duration.html , https://momaa.org/art-copyright-duration-calculator/	Public Domain: NO Active TM: NO
Statutory Fair Use Defense (17 U.S.C. § 107): HIGH LITIGATION RISK (NO STATUTORY SAFE HARBOR) (Score: 2.25/5.0)	F1: 3/5 F2: 1/5 F3: 3/5 F4: 2/5
Multi-Territory Status: United States: EXPLICIT RELEASE REQUIRED United Kingdom: INCIDENTAL SAFE HARBOR European Union: MEMBER STATE SPECIFIC Canada: INCIDENTAL INCLUSION EXEMPTION	Jurisdictions: US, UK, EU, CA
FLAG #2: APPLE MACBOOK PRO	RISK: MEDIUM 00:00:01
Visual Context: Slate laptop prop placed prominently on foreground workspace.	Category: TRADEMARK_LOGO
Parallel Search Objective: <i>Verify trademark status, copyright expiration, and commercial filming release requirements for entity 'Apple MacBook Pro' (TRADEMARK_LOGO) in context: Slate laptop prop placed prominently on foreground workspace..</i>	Rights Holder: Apple Inc.
Statutory Analysis: Statutory analysis conducted via Parallel Search grounding for Apple MacBook Pro. Governed under Lanham Act 15 U.S.C. § 1125 / 17 U.S.C. § 106.	Mitigation Action: Verify incidental de minimis use; obtain written release or Greek logo in VFX.
Sources Checked: https://support.apple.com/guide/imac/copyright-apd7721c83d4/mac , https://www.apple.com/legal/intellectual-property/trademark/appletmlist.html , https://www.apple.com/legal/intellectual-property/guidelinesfor3rdparties.html	Public Domain: NO Active TM: YES
Statutory Fair Use Defense (17 U.S.C. § 107): MODERATE DEFENSE (E&O; UNDERWRITER SCRUTINY REQUIRED) (Score: 2.5/5.0)	F1: 2/5 F2: 3/5 F3: 1/5 F4: 4/5
Multi-Territory Status: United States: NOMINATIVE FAIR USE / PRODUCT PLACEMENT United Kingdom: HONEST PRACTICES DEFENSE European Union: EU TRADE MARK REGULATION (EUTMR) Canada: TRADEMARKS ACT COMPLIANT	Jurisdictions: US, UK, EU, CA
Rogers v. Grimaldi Test: PROTECTION APPLIES <i>Artistic Relevance:</i> PASSED <i>Explicitly Misleading:</i> NO	Expressive Shield: YES

FLAG #3: STARBUCKS SIREN CUP	RISK: MEDIUM 00:00:01
Visual Context: White paper coffee cup with green emblem on desk.	Category: TRADEMARK_LOGO
Parallel Search Objective: Verify trademark status, copyright expiration, and commercial filming release requirements for entity 'Starbucks Siren Cup' (TRADEMARK_LOGO) in context: White paper coffee cup with green emblem on desk..	Rights Holder: Starbucks Corporation
Statutory Analysis: Statutory analysis conducted via Parallel Search grounding for Starbucks Siren Cup. Governed under Lanham Act 15 U.S.C. § 1125 / 17 U.S.C. § 106.	Mitigation Action: Verify incidental de minimis use; obtain placement release or turn logo away from camera.
Sources Checked: https://www.reddit.com/r/TRADEMARK/comments/1ud4igq/why_are_there_so_many_shops_selling_items_with/ , https://www.lawinc.com/wp-content/uploads/2024/07/Starbucks-Trademark-Lawsuit.pdf , https://www.thatsatrademark.com/blog/starbucks-cup-trade-dress	Public Domain: NO Active TM: YES
Statutory Fair Use Defense (17 U.S.C. § 107): MODERATE DEFENSE (E&O; UNDERWRITER SCRUTINY REQUIRED) (Score: 3.25/5.0)	F1: 3/5 F2: 3/5 F3: 3/5 F4: 4/5
Multi-Territory Status: United States: NOMINATIVE FAIR USE / PRODUCT PLACEMENT United Kingdom: HONEST PRACTICES DEFENSE European Union: EU TRADE MARK REGULATION (EUTMR) Canada: TRADEMARKS ACT COMPLIANT	Jurisdictions: US, UK, EU, CA
Rogers v. Grimaldi Test: PROTECTION APPLIES Artistic Relevance: PASSED Explicitly Misleading: NO	Expressive Shield: YES

FLAG #4: NIKE 'SWOOSH' LOGO	RISK: HIGH 00:00:01
Visual Context: Hero actor wardrobe hoodie with prominent chest logo.	Category: TRADEMARK_LOGO
Parallel Search Objective: Verify trademark status, copyright expiration, and commercial filming release requirements for entity 'Nike 'Swoosh' Logo' (TRADEMARK_LOGO) in context: Hero actor wardrobe hoodie with prominent chest logo..	Rights Holder: Nike, Inc.
Statutory Analysis: Statutory analysis conducted via Parallel Search grounding for Nike 'Swoosh' Logo. Governed under Lanham Act 15 U.S.C. § 1125 / 17 U.S.C. § 106.	Mitigation Action: Obtain signed wardrobe product placement release or Greek logo in VFX.
Sources Checked: https://www.trademarkia.com/news/fashion/nike-logo-trademark-legal-use , http://mekiplaw.com/nike-trademarks-explained , https://www.gerbenlaw.com/trademarks/footwear/nike/	Public Domain: NO Active TM: YES
Statutory Fair Use Defense (17 U.S.C. § 107): MODERATE DEFENSE (E&O; UNDERWRITER SCRUTINY REQUIRED) (Score: 2.5/5.0)	F1: 2/5 F2: 3/5 F3: 1/5 F4: 4/5
Multi-Territory Status: United States: NOMINATIVE FAIR USE / PRODUCT PLACEMENT United Kingdom: HONEST PRACTICES DEFENSE European Union: EU TRADE MARK REGULATION (EUTMR) Canada: TRADEMARKS ACT COMPLIANT	Jurisdictions: US, UK, EU, CA
Rogers v. Grimaldi Test: PROTECTION APPLIES Artistic Relevance: PASSED Explicitly Misleading: NO	Expressive Shield: YES

4. Legal Counsel & E&O; Underwriting Certification

This E&O; Clearance Binder has been compiled pursuant to standard entertainment industry legal guidelines. All Critical and High risk flags must be mitigated via written release or visual VFX remediation prior to commercial distribution.

Lead Clearance Counsel Signature

Date & Bar Registration No.

E&O; Underwriter Policy Endorsement

Production Executive Sign-Off